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1945

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JAPAN

119

F 6712

11 SEP 1945

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FROM Foreign Office Minute (Mr. Fitzmaurice)

No.

Dated 4th Sept.,

Received in Registry } 11th Sept., 1945.

F: Japan.

Terms of the Potsdam proclamation and Japanese Surrender

Minute by Legal Adviser on the terms of the Potsdam Proclamation of 26th July, 1945 and the Instrument of Surrender signed by the Japanese Plenipotentiaries in Tokyo Bay on 2nd September, 1945.

Last Paper.

F 6441

References.

(Print.) 4/9.

Circ a Cabinet.

PRINTED (How disposed of) (Japan Sept 4) Sect. 1.

8). Mr. Armstrong, (Dom. Offices)
55. Copies of Print Nos. 127 to 181)
Sept 28.

(Minutes.)

Print King & Cabinet with the Washington tel. No. 5965 as an Annex.

Mr. E.A. Armstrong should be asked to say how many copies he will require for circulation to the F.E. Ctee.

Note

Fifty five extra copies will be needed for Mr Armstrong.

18/9

See with minutes at F6197/630/23

which contains Mr. Fitzmaurice's opinion in its original Signed form. The Potsdam Declaration is at F4672/584/61 (1945).

Mr. Tomlinson 22/5

AC. 22/5/47

(Action completed.) PB 9/10.

(Index.)

Next Paper.

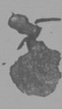
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E/E Division 120

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A copy has been sent to The King.

Despatch Section.

ARCHIVES

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Circulated to the Cabinet by direction of
JAPAN. The Secretary of State for Foreign Affairs September 4, 1945.

CONFIDENTIAL. (Not sent to Dominions) SECTION 1.

[F 6712/630/23] Copy No.

Minute by the Legal Adviser on the terms of the Potsdam Proclamation of the 26th July, 1945, and the Instrument of Surrender signed by the Japanese plenipotentiaries in Tokyo Bay on the 2nd September, 1945.

THE surrender was certainly proclaimed to be unconditional. At the same time it was clearly made on the basis of the Potsdam Declaration, and I do not think that the Allies could make use of the unconditional surrender to argue that they were released from any limitations of their rights and powers which may be implicit in or result from the Potsdam Declaration. Again I do not think that Article 3 of the Instrument of Surrender, if read in conjunction with Articles 5 and 6, can be interpreted as importing a right to require the Japanese to carry out Allied instructions other than for the purpose of fulfilling the terms of surrender and the Potsdam Declaration.

In so far, on the other hand, as the Allies can bring a given thing within the terms of the Potsdam Declaration, I think it results from Article 6 of the Instrument of Surrender that they can call upon the Japanese to take whatever action (and could themselves institute whatever controls) might be required in order to give effect to the Potsdam Declaration and to ensure that its intentions are fulfilled.

The relevant provisions of the Potsdam Declaration for the present purpose are Nos. (6), (7), (10) and (11).

Nos. (6) and (7) interpreted fairly liberally would appear to give the Allies the right to control the Japanese administration with a view to eliminating the warmongers, and it would even appear to give a right to effect such alterations in the Japanese governmental system as will secure the elimination of such persons "for all time." In so far as it could be shown that the system, as well as the views and actions of particular persons, has contributed to Japan's war-making policy and power, the Allies would be entitled to require alterations in the system. It may be in this connexion that the reference in Washington telegram No. 5965 to the Japanese system of land tenure is relevant, though that seems to be stretching matters about as far as they will go. I do not know the facts, but it might be argued that a system of land tenure which was of a purely feudal character was an essential element in a governmental system which placed power in the hands of a comparatively small oligarchy and was therefore anti-democratic.

This last point brings in No. (10) in the Potsdam Declaration under which the Japanese Government are bound to remove all obstacles to the revival and strengthening of democratic tendencies among the Japanese people. Under this provision freedom of speech, religion and of thought is to be established. On a liberal interpretation this would appear to give power to control, for instance, the Japanese educational system.

The effect therefore of Nos. (6), (7) and (10) appears to give the Allies wide powers to control and if necessary effect changes in the Japanese governmental and social systems with a view to liberalising and democratising them and in order to eliminate Japanese war-making tendencies and power.

The question of the control of Japanese economy arises principally under No. (11) of the Postdam Declaration and also partly under No. (7), which refers to the destruction of Japan's war-making power. These provisions are so worded as to simplify rather than express definite powers, but the effect of No. (11) would appear to be to enable the Allies to control Japanese industry for the purpose of eliminating those aspects which would enable her to rearm and for the purpose of exacting reparations in kind. It could probably be argued that a general control of industry must be established, at any rate for a period, if the Allies are to be able to ensure that these objectives are attained. It seems difficult, however, to extend these rights to the Japanese economy as a whole, *e.g.*, the Japanese financial and banking system, transport, shipping, &c. Except therefore as purely ancillary to the process of eliminating Japanese war industry and exacting reparations in kind, the Allies would not seem to have any specific rights of control in these fields, though possibly some degree of right in this connexion could be

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read into the phrase about the destruction of Japan's war-making power in No. (7).

As regards the control of Japan's foreign trade, I think a right to at any rate a certain degree of such control can be read into No. (11). For instance, in order to ensure that Japan is not in a position to make armaments, it may be necessary to limit or prohibit imports from abroad of certain classes of raw materials. Then also there is the phrase "Eventual Japanese participation in world trade relations shall be permitted." This could be read as meaning that to start with, Japanese trade relations with the rest of the world will not be permitted; with the corollary that if they were permitted they would be subject to such conditions and controls as the Allies might prescribe.

I hope the above analysis will be of some use. The Potsdam Declaration was necessarily framed in general language and some of the phrases are open to different interpretations when it comes to ascertaining what precisely they involve and extend to. The Instrument of Surrender is also cast in rather general terms. This generality is helpful up to a point in that a good deal can be read into the various phrases. At the same time both the Potsdam Declaration and the Instrument of Surrender are limited in scope, and I do not think it could be argued that the Allies have the same universal and unfettered rights in regard to Japan as they have in regard to every aspect of the German economy and governmental system.

Foreign Office,
4th September, 1945.

ANNEX.

Mr. Balfour to Mr. Bevin.

STATE Department official has informed a member of my staff that legal adviser to the office of Far Eastern Affairs has been instructed to consider the meaning of the terms for Japan laid down in the Potsdam Declaration. Official mentioned the vagueness of the reference in the declaration to economic controls and referred to the question whether the Allies can control Japanese foreign trade; he also spoke of the provisions regarding the democratisation of Japan, into which he thought anything could be read, and the reparations question.

2. It looks as though, since the substitution of Acheson for Grew, the office may have been ordered to see how tough a peace the Potsdam Declaration permits the Allies to impose on Japan. While this is mere speculation you should perhaps be prepared for the production by the Americans of a tough interpretation of the terms, particularly on the points mentioned above.

3. Since above message was drafted, Sir G. Sansom has visited State Department had seen Doomun, who is retiring to-day. He told Sansom that his resignation was the result of a strong difference of opinion with higher authorities in the Department, who were in his view contemplating treatment of Japan quite inconsistent with the Potsdam Declaration.

He said that his superiors were proposing to act as if Japan had surrendered unconditionally and were thinking of widespread interference in purely domestic affairs, such as reform of Japanese system of land tenure. He predicted serious trouble at a later stage, and saw that his position like that of Grew had become impossible.

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F 671

1 SEP 1945

Minute by the Legal Adviser on the terms of the Potsdam Proclamation of 26th July, 1945 and the Instrument of Surrender signed by the Japanese plenipotentiaries in Tokyo Bay on the 2nd September, 1945.

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G. G. Ashmore

4th September, 1945.

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ANNEX

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[CYPHER]

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FROM WASHINGTON TO FOREIGN OFFICE

Mr. Balfour.
No. 5965

D. 4.50 a.m. 1st September 1945.
R. 9.00 a.m. 1st September 1945.

31st August 1945.

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